



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
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BY: *MA. JULINA B. JUTILO*
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 111TH REGULAR SESSION OF THE 13TH SANGGUNIANG BAYAN OF CARMEN, SURIGAO DEL SUR HELD AT THE MUNICIPAL SESSION HALL ON FEBRUARY 4, 2025

PRESENT:

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member/ Temporary Presiding Officer
Hon. Nilo S. Bigno		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Renato A. Calañas		SB Member
Hon. Michael C. Escuyos		SB Member
Hon. Carmelito E. Valeroso		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Tanie A. Quillano		SB Member

EX-OFFICIO MEMBER:

Hon. Jeff Anthony D. Beloria		SK Federation President
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ON OFFICIAL BUSINESS:

Hon. Harvey S. Manawatao		Municipal Vice-Mayor
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ON LEAVE:

EX-OFFICIO MEMBER:

Hon. Blandena V. Sugian		ABC President
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ORDINANCE NO. 02
Series of 2025

“AN ORDINANCE PROHIBITING GOVERNMENT OFFICIALS, EMPLOYEES AND PRIVATE INDIVIDUALS/GROUPS AND LOCAL BUSINESSES OR CORPORATIONS IN ACCEPTING PANTAWID PAMILYA DOCUMENTS AND CASH CARDS AS LOAN COLLATERAL”

Sponsor: Hon. Elvie U. Ohao
Enacted: All Members Present

EXPLANATORY NOTE

The Department of Social Welfare and Development (DSWD) implemented the Pantawid Pamilyang Pilipino Program (4Ps) a poverty reduction and social development strategy that provides conditional cash grants to extremely poor household to improve their health, nutrition and education particularly to children, 0-18 by providing cash cards to all the beneficiaries.

The Pantawid Pamilyang Pilipino Program (4Ps) is a women empowerment program that provides direct financial grant to the member-beneficiary in order to overcome economic inequalities in their households and communities, as observed with the systematic disbursement through the Automated Teller Machine (ATM) out of Forty- Four Thousand Five Hundred Eighty-Four (44,584) registered and active beneficiaries, it was confirmed that several are involved in cash card pawning to private individuals/groups and or local businesses or corporations operating in the Municipality of Carmen, Surigao del Sur.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in session assembled that:

SECTION 1. Title- This Ordinance shall be known as Prohibiting Government Officials, Employees and Private Individuals/Groups and Local Businesses or Corporations in Accepting Pantawid Pamilya Documents and Cash Cards as Loan Collateral.

SECTION 2. Declaration of Policy- Consistent with the Policy and Guidelines of the National Advisory Committee (NAC), this Ordinance aims to:

- a. overcome economic inequalities in every household and/or community
- b. uphold the serious intention of the government to fight and break the inter-generational cycle of poverty

SECTION 3. Scope- This Ordinance shall be applicable to all Government Officials and Employees, Private Individuals and Groups, Local Businesses or Corporations as well as Pantawid Pamilyang Pilipino Program (4Ps) Beneficiaries in the Municipality of Carmen, Province of Surigao del Sur.

SECTION 4. Definition of Terms- As defined in this Ordinance, the following terms shall mean:

- a) **Borrower-** member of the Pantawid Pamilya who is engaged in contract of loan to any lender.
- b) **Beneficiaries-** refer to the active household registered in the Conditional Cash Transfer Program with a 0-18 child eligible for Compliance Verification System Monitoring Borrower.
- c) **Cash Card-** a tool used by beneficiaries to withdraw their cash grants from the program.
- d) **Collateral-** Pantawid Pamilya Documents and Cash Cards used as guarantee for payment of loan/s, goods and services.
- e) **Government Employee-** any person working in government agencies and instrumentalities regardless of their employment status who engaged his services as pawnee.
- f) **Government Official-** any person elected and appointed positions for public service who engaged in services as pawnee.
- g) **Lender-** any entity who lends money to Pantawid Pamilya beneficiaries in exchange of their cash cards and/or documents.

- h) **Loan Interest-** a certain percentage implemented by the Pawnee to the amount borrowed by the beneficiary.
- i) **Non-Pantawid Pamilya Beneficiary-** refer to government employees, individual or group not registered in the Pantawid Pamilya Program but a bonafide resident of Surigao del Sur.
- j) **Pawning of Cash Card/Documents-** an act of using cash cards and other Pantawid Pamilya documents for loan transactions.
- k) **Private Individual/Groups-** any person or establishment involved as pawnee.
- l) **Pantawid Pamilya Documents-** refers to the 4P's ID and Oath of Commitment (Kasabotan).
- m) **Loan-** value of money lent by the beneficiary/ies with corresponding interest.
- n) **Cash-** amount of money extended by the pawnee to the beneficiary/ies.
- o) **Goods-** tangible movable personal property having intrinsic value.
- p) **Services-** an act done for the benefit or at the command of another.
- q) **Municipal Link-** refers to the validation team assigned to verify and confirm formal from the field on the violation of the beneficiaries and non-beneficiaries.

SECTION 5. Prohibited Acts- There is hereby prohibited the following acts, to wit:

- a) The pawning of Cash Cards (beneficiary-beneficiary transaction) as stipulated in NAC Resolution No. 20 of the Pantawid Pamilyang Pilipino Program.
- b) The lending of money by any government official, employee, private individual/group and local business or corporation to any member of the program in exchange of their cash cards or cash grants as collateral to loan.
- c) The provision of goods and services by any government official, employee and private individual/group and local business or corporation in exchange of cash cards or cash grants of 4P's beneficiaries.

SECTION 6. Applicability- This Ordinance shall be applicable to all government officials, employees and private individuals/groups and local businesses or corporations within the municipalities and remote barangays in the Province of Surigao del Sur accepting Pantawid Pamilya documents, Cash Cards and Cash Grants as Loan Collateral.

SECTION 7. Enforcement Structure- The Municipal Convergence Advisory Committee (MCAC) shall be created to ensure the full implementation of this Ordinance to be composed of the following:

Chairman	:	Municipal Mayor
Regular Members	:	Municipal Vice- Mayor
	:	SB Member/Committee Chair on Social Services and Health

- : SB Member/Committee Chair on Education
- : Municipal Social Welfare and Development Officer
- : Municipal Health Officer
- : Municipal Budget Officer
- : Municipal Planning Development Coordinator
- : Municipal Local Government Operations Officer
- : Municipal Accountant
- : Municipal Treasurer
- : Municipal Agriculturist
- : Municipal Engineer
- : ABC President
- : PESO Manager-designate
- : Municipal Environment and Natural Resources Officer
- : Principal/School District Supervisor
- : CSO-FOC President
- : Municipal Nutrition/Population Officer Designate
- : Municipal Sanitary Inspector
- : Chief of Police
- : LDRRMO II
- : Local Civil Registrar Officer
- : IP Mandatory Representative
- : Municipal Link Officer/MAT Leader
- : Municipal System Focal Person
- : Social Welfare Assistant
- : Project Development Officer II- SLP
- : KC-NCDDP Area Coordinator
- : KC-NCDDP Financial Analyst

SECTION 8. Enforcement Procedure-

- a. Any report from the field of the prohibited acts shall be verified and confirmed by the assigned Municipal Link of the program.
- b. Upon verification and confirmation of the violation of the beneficiaries and non-beneficiaries, a formal written report shall be submitted to the Municipal Convergence Advisory Committee (MCAC) for appropriate action.
- c. The Municipal Convergence Advisory Committee (MCAC) shall convene and create a validation team to verify the formal reports from the field with facts and evidences.
- d. The validating team shall submit a written report with corresponding recommendation to Municipal Convergence Advisory Committee (MCAC) for appropriation action.

SECTION 9. Penal Provisions- Violation of Section 5 of this Ordinance shall be penalized as follows:

9-1. For Pantawid Pamilyang Pilipino Program (4Ps) Beneficiary:

- a. **First Offense-** Counseling by the Municipal Link and a written warning from Head of Provincial Operations Office.
- b. **Second Offense-** Counseling by the Municipal Social Welfare and Development Officer and a written warning from the Regional Director, Household's grants shall be suspended/not released for one (1) payment period or two (2) months.

- c. **Third Offense-** Delisting of the concerned household under GRS Fraud duly approved by the Regional Director and tagging to be facilitated by the Regional Grievance Officers. The Household's delisted status is non-appealable.

9-2. For Non-Beneficiary- Government Officials, Employees and Private Individuals/Groups and Local Businesses or Corporations:

a. **First Offense:**

a-1) For Government Officials/Employees- Fine of One Thousand Pesos (Php1,000.00) per cash card pawned and written warning from the Municipal Advisory Committee.

a-2) For Business Establishments/Groups/Corporation- Fine of One Thousand Pesos (Php1,000.00) per cash card pawned and written warning from Municipal Advisory Committee.

a-3) For Private Individuals- Fine of One Thousand Pesos (Php1,000.00) per cash card pawned and written warning from Municipal Advisory Committee.

b. **Second Offense:**

b-1) For Government Officials/ Employees- Fine of Two Thousand Pesos (Php2,000.00) per cash card pawned and written complaint to the Civil Service Commission.

b-2) For Business Establishments/ Groups/ Corporations- Fine of Two Thousand Pesos (Php2,000.00) per cash card pawned and suspension of business permit.

b-3) For Private Individuals- Fine of Two Thousand Pesos (Php2,000.00) per cash card pawned and appearance to the Municipal Convergence Advisory Committee.

c. **Third Offense and Subsequent Offenses:**

c-1) For Government Officials and Employees- Fine of Two Thousand Five Hundred Pesos (Php2,500.00) per cash card pawned and filing of appropriate charges in court pursuant to RA 6713 and other related laws, rules, and regulations, sanctions and criminal prosecution.

c-2) For Business Establishments/Groups/Corporations- Fine of Two Thousand Five Hundred Pesos (Php2,500.00) per cash card pawned and ten (10) days cancellation of business permit.

c-3) For Private Individuals- Fine of Two Thousand Five Hundred Pesos (Php2,500.00) per cash card pawned and ten (10) days imprisonment or at the discretion of the court.

SECTION 10. Depository and Utilization of Collected Fines- The LGU shall create a separate Trust Fund as depository account on collected penalties which shall be utilized for programs and activities of the Pantawid Pamilyang Pilipino Programs (4Ps) subject to usual rules and accounting procedures.

SECTION 11. Repealing Clause- Any or all Ordinances found inconsistent with the provisions of this Ordinance are hereby repealed or modified accordingly.

SECTION 12. Separability Clause- If for any reason or reasons, any part or provisions of this Ordinance shall be held unconstitutional or invalid, other parts of provisions thereof which are not affected shall continue to be in full force and effect.

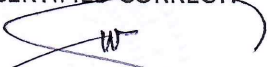
SECTION 13. Effectivity- This Ordinance shall take effect fifteen (15) days after its posting in at least two (2) conspicuous places within the municipality.

ENACTED this 4th day of February, 2025 at Carmen, Surigao del Sur.

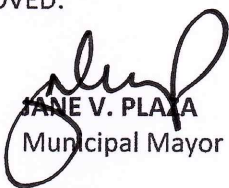
I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


CARLOS S. ESTRADA
SB Member/
Temporary Presiding Officer

APPROVED:


JANE V. PLATA
Municipal Mayor